

BOAT CHARTER AGREEMENT

DRAFT · PENDING LEGAL REVIEW. Clauses on insurance, licensing and liability have not been verified. Do not use with customers until this notice is removed.

CHARTER DETAILS

Charter company:

Legal name · tax ID · address

Charterer:

Full name · ID/Passport · phone · email

Vessel:

Name · registration · length · maximum number of people on board

Departure and return base:

Boarding port · return port if different

Period:

Boarding date and time · return date and time

Charter type:

☐ Skippered — skipper's name ☐ Bareboat — licence of the person in command, number and date of issue

Price, deposit and security deposit:

Total price · deposit paid · balance · security deposit amount and payment method

Condition at handover:

Inventory · prior damage · fuel level · engine hours

CLAUSES

1. Subject

The charter company grants the charterer the use of the vessel identified above, in the charter type ticked, for the agreed period and under the conditions of this agreement.

2. Price, deposit and security deposit

The charterer pays the price as stated. The security deposit covers any damage, fines, fuel and late return, and is refunded after the vessel is inspected on return, less any applicable amounts.

3. Insurance and excess

The vessel carries the insurance required by applicable law. The charterer bears the policy excess of _____ and any damage not covered by the policy.

4. Command of the vessel

In a skippered charter, the vessel is commanded by the skipper appointed by the charter company, whose safety instructions must be followed. In a bareboat charter, the charterer declares that they hold the licence stated above, valid and sufficient for the vessel and the cruising area.

5. Cruising area and use

The vessel will only sail within the area indicated by the charter company and will not exceed the maximum number of people on board. Sailing under the influence of alcohol or drugs, sub-chartering the vessel or using it for non-recreational purposes is prohibited.

6. Weather and cancellation

If weather or sea conditions make the trip unsafe, the charter company may cancel or shorten it. In that case it will offer a new date or a pro-rata refund, as follows: _____.

7. Fuel

The vessel is handed over with the fuel level stated and must be returned with the same level; otherwise the difference is charged at the current price. Alternative: charged by engine hours at _____ per hour.

8. Liability

The charterer is liable for damage to the vessel, its equipment and third parties caused by use contrary to this agreement, and for fines arising from use during the charter period.

9. Return and late return

The vessel is returned to the agreed port, at the agreed time and in the agreed condition. Each hour or part of an hour late is charged at _____.

10. Data protection

The personal data of the charterer and passengers is processed to manage the charter and meet legal obligations, in accordance with applicable data protection law. Data subjects may exercise their rights with the charter company.

ANNEX · CREW AND PASSENGERS

Skipper or person in command:

Full name · ID · licence

Passenger 1:

Full name · ID

Passenger 2:

Full name · ID

Passenger 3:

Full name · ID

Passenger 4:

Full name · ID

SIGNATURES

Place and date: _____

The charter company

The charterer

The skipper (if applicable)

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